

TENTATIVE RULING

Case: **ASI Savannah at Southport, LP v. Moody**
Case No. CV2026-0204

Hearing Date: **February 13, 2026** **Department Two** **1:30 p.m.**

Defendant Katrina Moody's request for judicial notice is **GRANTED**. (Evid. Code, §§ 451, subd. (b), 452, subd. (c), 453.)

Defendant's demurrer to plaintiff ASI Savannah At Southport, LP's complaint is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) While plaintiff attached the Violence Against Women Act ("VAWA") notices to its three-day notice to quit – material breach ("three-day notice"), the Notice of Occupancy Rights under the VAWA was not completed as articulated in U.S. Department of Housing and Urban Development's ("HUD") model Notice of Occupancy Rights (HUD-5830). (Complaint, ¶ 9(e), Exhibit 2; Defendant's RJN, Exhibits A & B.) Therefore, plaintiff did not attach a "'Notice of Occupancy Rights under the Violence Against Women Act,' as prescribed and *in accordance with directions provided by HUD*" to the notice served on defendant. (24 C.F.R. § 5.2005, subds. (a)(1)(i), (a)(2)(iii), emphasis added; see also 34 U.S.C.A. § 12491, subd. (a)(3)(J); 24 C.F.R. § 5.2003; Complaint, ¶ 6(c), Exhibit 1, p. 1.) As the notice did not include VAWA notices as required by statute, it "cannot support an action for unlawful detainer." (*DHI Cherry Glen Associates, L.P. v. Gutierrez* (2019) 46 Cal.App.5th Supp. 1, 9-10.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Rae v. State of California et al.**
Case No. CV-2023-2113

Hearing Date: **February 13, 2026** **Department Eight** **9:00 a.m.**

Motion for relief:

The Court rules on plaintiff Matthew Rae's motion for order granting plaintiff relief as follows:

- The motion for relief as to the Court's August 20, 2024, Order, is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) The motion as to this Order is untimely. (*Ibid.*)
- The motion for relief as to the Judgment of Dismissal entered on October 24, 2025, is **DENIED**. (Code Civ. Proc., § 473, subd. (b).) Plaintiff fails to show that the entry of the Judgment of Dismissal was the result of his mistake, inadvertence, surprise or excusable neglect. (*Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921 – 922; see generally Rae Decl.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for joinder:

Plaintiff Matthew Rae's motion for compulsory joinder and leave to amend is **DENIED**. (Code Civ. Proc., §§ 389, 472a, 473, 576.) Given the Judgment of Dismissal entered on October 24, 2025, and the Court's ruling on plaintiff's motion for relief, the Court lacks subject matter jurisdiction to determine this motion. (See *Hagan Engineering, Inc. v. Mills* (2003) 115 Cal.App.4th 1004, 1008.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.